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CASE #	CASE NAME	HEARING NAME
CVME2507574	DANKO RESTAURANT GROUP VS PATTAH	MOTION TO COMPEL ANSWER/ RESPONSE TO PRODUCTION OF DOCUMENTS SET ONE BY DANKO RESTAURANT GROUP

Tentative Ruling: Motion is denied as Moot. Request for sanctions denied.

Pursuant to CCP §2031.010, a party may demand that any other party produce and inspect a document that is in the possession of another party. The demanding party must designate documents by specifically describing individual items or reasonably particularizing categories of documents. (CCP §2031.030(c)(1).) The responding party must respond to each request by either a statement that the party will comply, a representation that the party is unable to comply or an objection. (CCP §2031.210(a)(1)-(3).) A demanding party may move for an order compelling further responses to a demand for inspection if the party determines that the statement of compliance or representation of inability to comply is incomplete or if an objection is without merit. (CCP §2031.310(a)(1)-(3).) A moving party must establish good cause justifying discovery. (CCP §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and facts justifying discovery. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Once good cause is established, the responding party has the burden to justify any objections. (*Ibid.*)

Meet and Confer - A motion to compel a further response to an inspection demand or interrogatory must be accompanied by a declaration stating facts showing a “reasonable and good faith attempt” to resolve informally the issues presented by the motion before filing the motion. (CCP §§ 2031.310(b)(2); 2030.300(b).) “This rule is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1435.) The level of effort necessary to satisfy the requirement varies depending on the circumstances of the case, but a serious effort is required. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.) Whether a “reasonable and good faith attempt” was made requires an “evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appears likely to bear fruit.” (*Clement v. Alegria* (2009) 177 Cal.App.4th 1277, 1294.) Importantly, the meet and confer declaration must state facts showing that the parties made “a reasonable and good faith attempt at an informal resolution of *each issue presented by the motion.*” (CCP § 2016.040, emphasis added.)

On February 2, 2026, DRG served RFPs on RBI. (Decl. of Prybylo, ¶ 3, Ex. A.) After an extension was granted, RBI served initial responses on April 10, 2026. (*Id* at ¶5.) DRG sent a detailed meet and confer letter on April 15, 2026 and an outline of the responses deficiencies on April 16. (*Id* at ¶7, 8; Ex. D and E. On May 18, 2026, the parties attended an Informal Discovery Conference. (*Id* at ¶10.) Although the parties were unable to resolve the issues informally, the meet and confer regarding the initial responses was sufficient.

Mootness - RBI argues that the Motion, filed on June 1, 2026, is now moot because supplemental responses were served on June 5, 2026. (Decl. of Chiang, ¶ 22.) Counsel for RBI asserts that she informed counsel for DRG on May 28 that the responses were forthcoming, but counsel did not agree to an extension and filed the Motion on the previously agreed-upon deadline. (Id at ¶ 23.) Although the supplemental responses were not attached, DRG does not dispute that the supplemental responses include substantive changes. As such, the present Motion regarding the initial responses is moot. (See *Sinaiko Healthcare Consulting v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 408-409.) Essentially, the service of supplemental responses superseded the prior responses. To the extent that DRG believes the supplemental responses remain deficient, it should file a new motion to compel and accompanying separate statement based on the supplemental responses after meeting and conferring in good faith.

Sanctions - The court shall impose a monetary sanction against a party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses to a demand for inspection or interrogatory unless it finds that the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust. (CCP §2030.290(c); §2031.310(d).) “Whenever one party's improper actions even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.” (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal. App. 4th 853, 878.) The court may consider the issue of sanctions where the responding party serves responses after the motion is filed, rendering the motion moot. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 409.)

Both requests for sanctions are denied. Although the present Motion could have been avoided if DRG had granted RBI's request for a further extension on May 28, 2026 to allow RBI to file its supplemental responses prior to filing the Motion, it does not appear to be frivolous or filed in bad faith. Based on the meet and confer communications, from RBI's counsel it was not clear whether RBI would serve supplemental responses until May 28, which was three days prior to the initial agreed-upon motion deadline. As such, both parties have established substantial justification for their actions.